

TENTATIVE RULING FOR JULY 1, 2026

Department R12 - Judge Kory Mathewson

Creditors Adjustment Bureau, Inc. v. California Concrete Plus, Inc.

Motions: (1) Compel Responses Special Interrogatories; Sanctions
(2) Compel Responses to Requests for Production of Documents; Sanctions

Movant: Plaintiff Creditors Adjustment Bureau, Inc.

Respondent: Defendant California Concrete Plus, Inc.

RULING: Motions (1) & (2) are DENIED. Sanctions are DENIED to both parties.

Defendant - to provide Order(s) and give Notice.

In light of responses having been served before the motions were filed, the Court denies the motions as Plaintiff had no justification to file the motions when responses were already received before the motions were filed. While the Court notes it was the matter of 1 hour and that Plaintiff spent time drafting the motions, Plaintiff nevertheless received the responses it was seeking.

As to Plaintiff's requests for sanctions, the Court denies Plaintiff's requests. Plaintiff was unsuccessful on the motions and there was no basis for Plaintiff to file them and represent to the Court that no responses had been served, when as of the time of filing, Plaintiff had received verified responses.

As for Defendant's request for sanctions, even though Plaintiff had no basis to file the motions, the Court denies Defendant's request as not justified under the circumstances. On its face, the amount sought is not reasonable. "A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The special circumstance is represented here. Given what is at issue, there should be no reason an attorney who charges \$600/hour needs 3 hours to prepare an opposition to a motion to compel responses, where all that is at issue is that responses were provided. Further, the opposition argues about the lack of a meet and confer before the motions were filed, when such requirement does not exist on Compel motions. Finally, the reason \$900 is needed for a Court appearance is not explained and is not demonstrated to be a reasonable hourly rate, neither is the number of hours sought.

Dated: July 1, 2026

Judge Kory Mathewson